OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

# Placeholders, wrong dates and missing dollar figures in Shoalhaven's 27 October papers

Sent 22 October 2026 · To Shoalhaven City Council · Response requested by 26 October 2026

**To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council**
**And to: Clr Patricia White, Mayor**
**Copied to: Clr Selena Clancy, Deputy Mayor; all councillors; the Chairperson, Audit, Risk and Improvement Committee**
**From: Stephen Prothero, Eye on Shoalhaven Council**
**Date: 22 October 2026**
**Subject: The business papers for the 27 October meeting: errors that reached the public, how they were cleared, and what it says about the review process**
**STATUS OF THIS LETTER**
**This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.**
**It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.**
**It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.**
**It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.**
**It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.**
**It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.**
**Replies will be published in full. If no reply is received, that will be recorded as it stands.**

Mr Constance and Mayor White,
I have read the agenda, the addendum and the attachments for Tuesday's Ordinary Meeting and assessed the 39 entries against eight tests: clear recommendation, risk, financials, consultation, statute and policy, internal accuracy, drafting and attachments. Eight rate Red, 17 Amber and 14 Green. The scoring is my own judgment and I will publish it item by item next week. This letter puts to you what I found, what it suggests about how

papers are cleared, and some questions.

1. What reached the public

• Unfinished documents. The draft terms of reference for the proposed Strategic Housing and Development Advisory Committee (CL26.284, Attachment 1, printed pages 108 to 114) carry the header “INSERT COMMITTEE NAME” on five pages, blank adoption and minute fields, and a left-in comment in the voting-members list: “Will need to test their willingness to be involved in a committee of this nature - would probably need to include at a minimum DPHI and Housing NSW”. Council is asked to establish the committee on that document. The planning proposal at CL26.286 (Attachment 1, page 208 of the pack) reads “On [INSERT DATE], Council resolved ([INSERT RESOLUTION REF AND LINK])”. The liquid trade waste policy at CL26.292 has “Error! Bookmark not defined” in its contents page, and all three water policies carry tracked-change residue. The attachment to CL26.290 is titled “Voluntary Acquistion of Residential Land”; the policy concerns residual C2 land.

• Drafting instructions in a published motion. CL26.294 (pool seasons) includes the sentences “The detailed CCB minutes should be checked before attributing further specific statements to attendees” and “The adopted 2026/27 dates for Milton should be confirmed before the motion is lodged”. The motion also asks for a costed report “with this NOM”. The paper contains no costs.

• A stale item. CL26.198, deferred from 25 August and 22 September, treats Cr Wilkins as Deputy Mayor and Acting Mayor and asks to extend his tenure to 30 January 2027. CL26.270 and Mayoral Minute MM26.12 record Cr Clancy as elected Deputy Mayor on 22 September (MIN26.301). No staff note says so.

• Facts that do not agree. CL26.289 refers to a “29 June 2026 Meeting” and “MIN23.198” for a resolution that is elsewhere in the same paper MIN26.198 of 29 July 2026, and gives the Berry plant horizon as both 2046 and 2050. CL26.280 gives the start of consultation as both 17 November and 25 November 2025 in the same report. CL26.291 says an exhibition “will be” held from 24 September to 22 October, which closes five days before the meeting, and that submissions will go to “a future Council meeting”, yet asks Council to classify the land on 27 October.

• Money missing. CL26.284 justifies disbanding five bodies on resourcing and states no cost or saving. CL26.289 gives no estimate for the Berry sewage plant upgrade. CL26.290 is premised on being “cost-neutral” and gives no valuation or proceeds. CL26.276 says costs “were incurred” over four years of acquisition work and states none.

• Questions not answered. The question on notice at CL26.300 asked for a list of court cases since 1 September 2023 with costs. The answer gives two numbers and defers the rest to a report that responds to MIN25.351 and MIN26.143.

2. How the papers were cleared

On the face of the papers, the only evidence of clearance is the “Approver” line. Directors are named on 27 reports: Mr Norwood eight, Mr Nelson (Acting Director City

Performance) seven, Ms Struys seven, Ms Buckman two, Mr McVey one, and you one (CL26.266). A Manager, Mr Kidd, is named on CL26.291. The Mayoral Minute, the committee report, the condolence motions and nine notices of motion and questions name no approver.

Three things follow, and they are my reading rather than a finding:

• A director's name is on papers that still contain placeholders, comments and tracked changes. Those can be found by a text search. Whatever the review step is, it is not doing that.

• The same text is reused across reports: the consultation sentence in CL26.267 and CL26.268, the risk paragraph in CL26.285 and CL26.286, and six "Nil" headings in CL26.274.

• Nobody appears to be reading across the agenda. CL26.198 conflicts with CL26.270 and MM26.12. CL26.265 asks staff for a tiny-homes report while CL26.284 and CL26.296 say the same staff are committed to the land use scheme. Notes by the CEO appear on CL26.295 to CL26.297 and not on CL26.293, CL26.294, CL26.298 or CL26.299.

3. Is this a sign of a failing administration?

My opinion, labelled as such: it is evidence of a business-paper quality control that does not work. It is not, on its own, enough to call the administration failing, and I do not make that claim.

The case that it is not. Fourteen of 39 entries are sound, and some are good: CL26.279, CL26.275 and CL26.267 would pass any review. Several errors are small. Some directors are acting. The organisation is working through a heavy reform and planning program, and an agenda of this size is hard to produce.

The case that it is. The faults appear across all directorates, not one. They are the kind a simple pre-publication check finds. They are on papers that carry a director's approval. And the missing dollar figures matter most where Council is asked to commit money or staff time.

What would change my view in either direction is how Council responds: whether corrections are made before Tuesday, whether the check is described and written down, and whether anyone outside the line of sign-off reviews it.

4. Questions

Question 1. Who reviews a business paper between the author and publication on InfoCouncil? Please describe each step, who is responsible for it, and whether there is a written procedure or checklist. If there is none, please say so.

Question 2. Does any step check for placeholder text, comments, tracked changes, and consistency of dates, names and resolution numbers within and across items? If not, why not?

Question 3. How did the terms of reference at CL26.284 reach the agenda with "INSERT COMMITTEE NAME" on five pages and a comment about testing the willingness of agencies? Does the comment mean the Department of Planning, Housing and Infrastructure and Homes NSW have not yet agreed to take part?

**Question 4. How did the placeholder text in the CL26.286 attachment, the formatting errors in the CL26.292 and CL26.290 attachments, and the drafting instructions in CL26.294 reach publication? Who is responsible for checking a councillor's notice of motion before it is published?**

**Question 5. Was CL26.198 reviewed after the Deputy Mayor election on 22 September? Why does the paper carry no staff note, and does Council's legal advice allow a Deputy Mayor's term that has already expired to be extended?**

**Question 6. Has any submission been received on the proposed classification at CL26.291, which closed on 22 October? Will councillors be told on Tuesday?**

**Question 7. What decides whether a notice of motion receives a "Note by the CEO"? Why do CL26.295, CL26.296 and CL26.297 have one and CL26.293, CL26.294, CL26.298 and CL26.299 do not, when CL26.294 and CL26.299 commit money?**

**Question 8. Is there a standard for the "Financial Implications" section requiring a dollar figure or a date by which one will be given? What is the current cost of the five bodies at CL26.284, the estimate for the Berry plant upgrade at CL26.289, and the figures behind "cost-neutral" at CL26.290?**

**Question 9. Does Council intend to issue an addendum or corrected copies before the meeting on 27 October? If so, which items?**

**Question 10. How many senior positions are currently filled on an acting basis, and does that affect who reviews papers before they are signed?**

**Question 11. Has the Audit, Risk and Improvement Committee been asked to review the quality of the business paper process, or will it be? Will Council report how many errata, addenda or withdrawn items it issues each year?**

**Question 12. To the Mayor, or whoever presides on 27 October: Are you satisfied with the standard of papers presented to Council, and what oversight does the elected Council have of their quality?**

**Question 13. To Mr Constance: You are named as approver on only one report (CL26.266). What is your own role in clearing business papers, and what assurance do you receive that the review process works?**

**I would like to report your answers before the meeting and ask for a response by 12 noon on Monday 26 October 2026. If any question cannot be answered, please say which and why, so the reason can be reported accurately.**

**I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group. If no reply is received I will report that plainly. A detailed article will follow next week.**

**No adverse finding has been made against any councillor or officer, and none is implied. This letter concerns the quality of documents and processes, and it makes no allegation of bad faith, dishonesty or misconduct by anyone. Every factual statement is drawn from Council's published agenda, addendum and attachments for 27 October 2026. Opinion is labelled as opinion. I will correct any error promptly and with the same prominence.**

**Yours sincerely,**

**Stephen Prothero**

**Stephen Prothero**

**Independent community journalist | Publisher, Eye on Shoalhaven Council**

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